

for the revision under the Juries (Ireland) Acts, 1871 to 1894, of jurors' lists in the present year, at such times (not later than the fifteenth day of November) and places as may be fixed by the Lord Chancellor of Ireland, notwithstanding that no courts are to be held in the present year for the revision of the register of parliamentary voters.

CHAPTER 14.

An Act to make provision with respect to the administrative expenses of the Statutory Committee and of Local and District Committees under the Naval and Military War Pensions, &c. Act, 1915; and for certain other purposes connected with Pensions and Allowances.

[17th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Administrative
expenses of
local and dis-
trict commit-
tees.
5 & 6 Geo. 5,
c. 83.

1.—(1) The administrative expenses of any local committee, or of any sub-committee thereof, established under the Naval and Military War Pensions, &c. Act, 1915 (hereinafter referred to as the principal Act), to an amount not exceeding such approved estimate as is hereinafter mentioned, shall be defrayed by the council of the county, or borough, or urban district for whose area the local committee is established, and the administrative expenses of any district committee appointed under the principal Act shall be defrayed as part of the expenses of the local committee for the county in whose area the district is situate.

(2) Every local committee shall, at such times as the Local Government Board may direct, submit for approval to the council by which the administrative expenses of the committee are to be defrayed an estimate of the administrative expenses proposed to be incurred by the local committee for such period as the Board may direct, and may from time to time so submit supplementary estimates, and the council shall within such time as the Board may direct forward to the Board all such estimates together with an intimation of their approval or modified as they may think fit, and the Board shall consider all estimates so submitted, and shall, if and so far as they consider any such estimate reasonable, approve the estimate, and thereupon there shall be paid out of moneys provided by Parliament, at such times and in such manner as the Treasury may direct, sums equal in the aggregate to two-thirds of the expenses incurred not exceeding two-thirds of such estimate as so approved, and the sums so paid shall be paid to the council.

(3) The expenses of a council under this Act, so far as not defrayed out of moneys provided by Parliament, shall be defrayed out of the proceeds of such fund or rate as may be directed by the Local Government Board :

Provided that, if a separate local committee has been established for any borough or urban district in a county, the expenses of the local committee for the county shall be treated as expenses for special county purposes from contribution to which the borough or urban district shall be exempt.

(4) For the purposes of the foregoing provisions of this section, the administrative expenses of a local or sub-committee or district committee shall include travelling expenses and compensation for loss of remunerative time in the case of members of the committee or any sub-committee thereof calculated in accordance with regulations made by the Minister of Pensions subject to the approval of the Treasury.

(5) Where in the exercise of the powers conferred by section two of the Naval and Military War Pensions, &c. (Expenses) Act, 1916, the council of a county or borough or urban district have, before the passing of this Act, made, or hereafter make, payments towards the administrative expenses of any local committee or district committee appointed under the principal Act incurred in respect of the period before the passing of this Act, and the aggregate amount of such payments exceeds the one-third of the administrative expenses of the committee for such period, a sum equal to the excess shall, if and so far as the Local Government Board have sanctioned or may hereafter approve such expenses, be repaid to the council out of moneys provided by Parliament.

2. For subsection (5) of section one of the principal Act, which relates to the administrative expenses of the Statutory Committee, the following subsection shall be substituted :—

Administrative expenses of the Statutory Committee.

“(5) All other expenses of the committee (including such travelling expenses and other allowances to members of the committee and its sub-committees as the committee may determine) in accordance with a scale approved by the Treasury shall be paid out of the funds at the disposal of the committee.”

3. Notwithstanding anything in subsection (1) of section two of the principal Act and without prejudice to the powers thereunder, a separate local committee may, if the Minister of Pensions so determine, after consultation with the county council or a committee thereof, be established under the principal Act for any borough or urban district having a population of less than fifty thousand and not less than twenty thousand the council of which so desires, so, however, that such local committee shall not exercise the functions of a local committee set forth in paragraph (f) of section four of the principal Act, but those functions shall continue to be exercised as respects the

Local committees for certain boroughs and urban districts.

borough or urban district by the local committee for the county in which the borough or urban district is situate, except so far as such functions may be delegated by the local committee of the county to the local committee of the borough or urban district :

Provided that where such functions are not so delegated to the local committee of the borough or urban district, contributions of such amount as may be agreed upon, or in default of agreement may be determined by the Local Government Board, shall be paid by the local committee of the borough or urban district towards the administrative expenses of the local committee of the county in respect of the exercise of such functions within the borough or urban district, and such contributions shall for the purposes of this Act be treated as part of the administrative expenses of the local committee of the borough or urban district.

District committees in London.

4. Notwithstanding anything in the principal Act there shall, within six months after the termination of the war, be set up in the City of London and in each metropolitan borough a district committee, and the London County Council shall for this purpose submit to the statutory committee any necessary amendment of or addition to the scheme made under the principal Act for the County of London : Provided that any such amendment of or addition to the scheme so submitted shall not be approved until the Minister of Pensions is satisfied that arrangements are made so that the existing organisation of the local committee for London is not unduly disturbed.

Alteration of purposes for which voluntary funds may be applied in certain cases.

5. Where any fund has been raised by voluntary contributions for the purpose of providing assistance in some specific form to disabled officers or men, or to the wives, widows, children, or dependants of officers or men, and provision has been made for such assistance out of public moneys, the Minister of Pensions may, on the application of the trustees or managing body of the fund, after taking such steps as he thinks desirable for ascertaining the wishes of subscribers, make with the concurrence of such trustees or managing body an order authorising the fund to be applied to such other purposes for the benefit of disabled officers or men or the wives, widows, children or dependants of officers or men as may be specified in the order, and on the making of any such order the fund may be applied accordingly.

Power of Minister of Pensions to accept and administer gifts for assisting disabled officers and men.

6. It shall be lawful for the Minister of Pensions to accept any gift of money or securities, by will or otherwise, to be applied wholly or mainly for the purpose of assisting disabled officers and men after they have left naval or military service, and the widows, children, and other dependants of deceased officers and men, and subject to any trust affecting any such gift to administer the same under such conditions as the Minister may think fit.

7. A person who holds the office of chairman of the Statutory Committee, and does not receive a salary in respect of his office as such, shall not by reason of his office be incapable of being elected to or voting in the Commons House of Parliament, and if during the continuance of the present Parliament any person who is a Member of that House is appointed to that office he shall not by reason of such appointment vacate his seat as such Member.

Power to
chairman of
Statutory
Committee to
sit in Parlia-
ment.

8.—(1) In the application of this Act to Scotland “Local Government Board” means the Secretary for Scotland, “borough” or “urban district” means a royal, parliamentary, or police burgh.

Application to
Scotland.

(2) In lieu of subsection (3) of section one the following provision shall apply:—

(a) The expenses of a county council under this Act so far as not defrayed out of moneys provided by Parliament shall be defrayed out of the general purposes rate: Provided that, notwithstanding anything contained in the Local Government (Scotland) Act, 1889 (in this section referred to as the Act of 1889), the ratepayers of a police burgh shall not be assessed by the county council for any such expenses unless the police burgh is for the purposes of this Act held to be within the county: and provided further that with respect to every burgh within the meaning of the Act of 1889 which is for the purposes of this Act held to be within the county subsection (3) and subsection (4) of section sixty and section sixty-six of the Act of 1889, shall, so far as applicable, have effect as if such expenses were expenditure therein mentioned.

52 & 53 Vict.
c. 50.

(b) The expenses incurred by a town council under this Act, so far as not defrayed out of moneys provided by Parliament, whether incurred under requisition from the county council or otherwise, shall be defrayed out of the public health general assessment, but shall not be reckoned in any calculation as to the statutory limit of that assessment.

9. In the application of this Act to Ireland—

Application to
Ireland.

(1) “Local Government Board” means the Local Government Board for Ireland;

(2) The expenses of a county council under this Act so far as not defrayed out of moneys provided by Parliament shall be defrayed out of the county fund, and the amount required may be raised by means of the poor rate equally over so much of the county as does not comprise any borough or urban district for which a separate local committee has been established.

Short title,
construction,
and repeal.

6 & 7 Geo. 5.
c. 65.

10.—(1) This Act may be cited as the Naval and Military War Pensions, &c. (Administrative Expenses) Act, 1917, and the Naval and Military War Pensions, &c. Acts, 1915 and 1916, the Ministry of Pensions Act, 1916, so far as it relates to the Statutory Committee, and this Act may be cited together as the Naval and Military War Pensions, &c. Acts, 1915 to 1917.

(2) This Act shall be construed as one with the principal Act.

6 & 7 Geo. 5.
c. 12.

(3) Section two of the Naval and Military War Pensions, &c. (Expenses) Act, 1916, and section eighteen of the Local Government (Emergency Provisions) Act, 1916, are hereby repealed :

Provided that nothing in this repeal shall affect the power of making contributions under the enactments so repealed towards the administrative expenses of local and district committees incurred before the passing of this Act.

CHAPTER 15.

An Act to amend the enactments relating to National Health Insurance with respect to persons suffering from disablement in consequence of the present War.

[17th May 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of
5 Geo. 5. c. 29,
s. 1 (1).

1.—(1) For subsection (1) of section one of the National Insurance (Part I. Amendment) Act, 1915, the following subsection shall be substituted :—

1 & 2 Geo. 5.
c. 55.

“(1) Where, in pursuance of any Order in Council relating to pensions of officers or seamen and marines, or of any Royal Warrant relating to pensions of officers or soldiers, disabled in consequence of the present war, there has been granted, whether before or after the passing of this Act, to any person to whom section forty-six of the National Insurance Act, 1911, applied at the time of his leaving naval or military service, a pension in respect of disablement in the highest degree, the rate of any sickness or disablement benefit to which that person may be entitled in respect of his insurance under the National Insurance Act, 1911, shall, throughout the period in respect of which that pension, or a pension of a greater amount granted in lieu thereof, is payable, be reduced by five shillings a week, notwithstanding anything in the said Act to the contrary :